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California just passed a pair of online safety bills that could have national implications

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A sweeping state bill aimed at regulating how tech and social media companies build products for and collect data on children in cyberspace passed the California State Senate on Monday, and it now heads to Gov. Gavin Newsom's desk to possibly be signed into law.

The bill is aimed at protecting young people who are particularly vulnerable online to body image issues and negative social pressures and is notable for attempting to regulate not just products directed at kids, but also ones they reasonably might use.

Called the California Age Appropriate Design Code, the bill, AB2273, would require companies like social media sites with products that are often used by kids to put safeguards in place, like assessing whether new features could expose children to or be targeted by harmful content, or draw them in to hours of scrolling through addictive content.

The measure would also require companies whose services might be used by children to estimate the age range of their users, and default privacy settings to the highest levels for minors, among other features.

The bill would also place limits on how companies use the data of young people, including creating digital profiles of them that many companies use to target advertising.

"We like to say as California goes, so goes the nation," said Assembly member Buffy Wicks, D-Oakland, during a Tuesday news conference. Wicks, one of the sponsors of the bill, alluded to the potential national implications for regulating big tech companies should the bill become law.

Wicks said the measure was modeled after a law in the United Kingdom that defaults Google to safe search mode and disabled direct messages between children and adults they don't follow on some social media sites, among other features.

The bill has seen bipartisan support, including from Assembly member Jordan Cunningham, R-San Luis Obispo.

"We have to show D.C. how things can get done and how kids can be protected," he said during the news conference.

Some of the harms legislators are worried about are also under investigation by Attorney General Rob Bonta's office, which earlier this year said it was looking into how TikTok had promoted itself to young people and its impacts on young people's physical and emotional health.

TikTok's parent companies and Google previously paid fines to federal regulators for collecting children's online information without the permission of their parents.

Bonta's office announced another similar investigation last year into Meta, formerly Facebook, for promoting Instagram to young people, investigating whether the company ignored the product's potential negative health effects.

But advocates have raised concerns over the bill, including San Francisco digital privacy nonprofit the Electronic Frontier Foundation, which previously warned legislators the bill could result in unintended consequences like companies collecting more data on users to verify their ages.

Along with that bill seeking to protect kids online, legislators are also advancing AB587, which would require social media companies to disclose information about their content moderation policies.

Authored by Assembly Member Jesse Gabriel, D-Woodland Hills (Los Angeles County), the bill aims to skirt debates about what companies like Twitter and Facebook should and should not censor online by instead attempting to draw back the curtain on how those processes work.

"The bill seeks to address concerns that social media platforms are enabling the spread of hate," Gabriel said during the joint news conference of his bill, which has passed the State Senate with bipartisan support and is back in the Assembly for a concurrence vote.

Gabriel said social media has too often radicalized people and provided a platform for public health disinformation, which is why the bill would require major social media companies to publicly disclose their content moderation policies and report key data about how they enforce those policies.

He said social media companies had pushed back on the measure throughout the legislative process, although the bill is not designed to censor any particular speech and doesn't require companies to have specific content moderation policies.

"They believe that whatever we do will automatically and instantly become a model for other states," he said.

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